

Court No. - 3

Case :- WRIT - C No. - 16978 of 2023

Petitioner :- Preety Gautam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Nitin Agarwal

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Anish Kumar Gupta,J.

1. Heard Shri Nitin Agarwal, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Pranjal Mehrotra, learned counsel for the respondent Nos.2 and 3.

2. By the impugned order dated 20.04.2023, the application of the petitioner for a new electricity connection in the premises in question, has been rejected.

3. The Court requested the learned counsel for the petitioner to show any material on record that the petitioner's application was accompanied with the documents as provided in Section 4.4(a) of the U.P. Electricity Supply Code, 2005.

4. Learned counsel for the petitioner states that since the rent agreement for a fixed period has already expired, therefore, the petitioner could not submit the documents required in section 4.4 (a) of the U.P. Electricity Supply Code, 2005.

5. In view of the aforesaid, we cannot issue a direction, in the nature of mandamus to the respondent no.3 when the petitioner herself has not complied with the provision of Section 4.4(a) of the U.P. Electricity Supply Code, 2005.

6. In view of the aforesaid, the writ petition is **dismissed**.

Order Date :- 19.5.2023

SFH